



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 12094
(SECOND REVISION)

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 11 1998

EXPIRATION DATE: November 30, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Suburban Propane, Inc.
Anchorage, AK
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of Propane in a DOT Specification 51 portable tank exceeding the weight limitations authorized for shipment by cargo aircraft. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.101 table, column (9B), 175.30.
5. BASIS: This exemption is based on the application of Suburban Propane, Inc. dated June 17, 1998 and additional information dated September 3, 1998 submitted in accordance with 49 CFR 107.105.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Propane	2.1	UN1978	N/A

7. SAFETY CONTROL MEASURES: Packaging prescribed is a DOT Specification 51 portable tank containing 1,000 gallons (4,240 pounds) of product.

DEC 11 1998

8. SPECIAL PROVISIONS:

- a. Shipments must be transported in Lockheed L-100 cargo aircraft operated by Lyndon Air Cargo.
- b. Shipments originate at Fairbanks, Alaska to Barrow Airport, Barrow Alaska.
- c. The portable tanks must be properly secured in the aircraft to prevent movement during transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each aircraft used to transport the portable tanks authorized by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

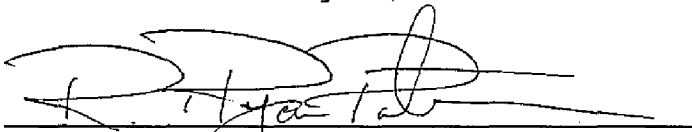
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


for Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

12/11/98
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, Washington, DC 20590-0001, Attention: Docket Section, 202-366-5046.

Dist: FAA
PO: am